

Authority for Personal Data
P.O. Box 93374, 2509 AJ The Hague
Hoge Nieuwstraat 8, 2514 EL The Hague
T 070 8888 500 - F 070 8888 501
autoriteitpersoonsgegevens.nl
The Minister for Poverty Policy, Participation and Pensions
P.O. Box 90801
2509 LV THE HAGUE
Date

June 29, 2023

Our reference

z2023-02869

Your letter dated

June 23, 2023

Your reference

2023-0000351467

Subject

Advice on the preliminary draft amendment of the Participation Act regarding the one-time categorical provision of energy allowance to low-income households in 2023 'established and sent by email on June 27, 2023'

Dear Ms. Schouten,

In a letter sent by email on June 23, 2023, the Authority for Personal Data (AP) was urgently consulted regarding the proposal for a one-time compensation for energy costs to students as intended in the preliminary draft bill to amend the Participation Act concerning the one-time categorical provision of an energy allowance to low-income households in 2023 (hereinafter: the draft). A separate email on June 23, 2023, supplemented paragraph 5 of the draft.

A request was made to provide advice within a few days. In light of this, a limited analysis of the bill sufficed for the provision of advice.

The AP has a comment on the draft and advises to take this into account.

Date

June 29, 2023

Our reference

z2023-02869

2/3

Scope of the draft

In 2022, municipalities¹ provided a one-time energy allowance to low-income households² through categorical special assistance.³ Students were excluded from this allowance. The cabinet has decided to again grant an energy allowance to low-income individuals in 2023, in the same manner as in 2022.

Students with a basic grant living away from home and an additional grant will also receive a one-time compensation for energy costs in 2023. For this, data is needed that is available in the systems of the Education Executive Agency. To this end, the draft stipulates that the Minister of Social Affairs and Employment (SZW) may process the personal data of students that the Minister of Education, Culture and Science has made available for the implementation of the Student Finance Act 2000, at least the following personal data, excluding special categories of personal data:

- a. contact details;
- b. identifying information including the citizen service number or the education number⁴;
- c. bank account number;
- d. whether an additional grant has been awarded to a student;

e. whether a basic grant living away from home has been awarded to a student.⁵

Advice

Legal certainty

The draft specifies which personal data the Minister of SZW may process for the purpose of granting a one-time compensation for energy costs to students.

Legislation regarding interference with the right to protection of personal data must, according to established case law, always be clear and precise, and its application must be predictable for those to whom it applies.⁶ The wording 'at least' does not imply a limitation and therefore does not provide legal certainty.

The AP advises to legally limit the personal data of students processed in this context, possibly with the help of a sufficiently specific delegation basis for this purpose, or to substantiate in the explanation why a limitative enumeration is impossible or undesirable.

1 More specifically: the boards of mayor and aldermen.

2 Provision through categorical special assistance means – in contrast to provision through individual special assistance – that municipalities do not have to establish that the household has actually been confronted with a significantly increased energy bill and that the household cannot financially bear this significantly increased energy bill.

3 Municipalities have the authority to further define what is meant by a 'low income'. The implementation of the energy allowance in 2022 shows that municipalities often use an income threshold of 120% or 130% of the social minimum.

4 Amendment of the Participation Act regarding the one-time categorical provision of an energy allowance to low-income households, Stb. 2022, 321.

5 Education number, as referred to in Article 1.7 of the Student Finance Act 2000.

6 The proposed Article 78ee, sixth paragraph, of the Participation Act.

7 Recital 41 of the GDPR.

Date

June 29, 2023

Our reference

z2023-02869

3/3

Workload of the AP

The AP notes that the draft is not expected to require additional effort from the AP.

Publication of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would like to be informed of the expected timing of the publication as soon as this is known.

Sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman